

BLACKMUN, J., dissenting

statute requiring the Secretary of Commerce to certify to the President that foreign nations were not conducting fishing operations or trading which “diminis[h] the effectiveness” of an international whaling convention. *Id.*, at 226. The Court expressly found standing to sue. *Id.*, at 230–231, n. 4. In *Robertson v. Methow Valley Citizens Council*, 490 U. S. 332, 348 (1989), this Court considered injury from violation of the “action-forcing” procedures of the National Environmental Policy Act (NEPA), in particular the requirements for issuance of environmental impact statements.

The consultation requirement of §7 of the Endangered Species Act is a similar, action-forcing statute. Consultation is designed as an integral check on federal agency action, ensuring that such action does not go forward without full consideration of its effects on listed species. Once consultation is initiated, the Secretary is under a duty to provide to the action agency “a written statement setting forth the Secretary’s opinion, and a summary of the information on which the opinion is based, detailing how the agency action affects the species or its critical habitat.” 16 U.S.C. §1536(b)(3)(A). The Secretary is also obligated to suggest “reasonable and prudent alternatives” to prevent jeopardy to listed species. *Ibid.* The action agency must undertake as well its own “biological assessment for the purpose of identifying any endangered species or threatened species” likely to be affected by agency action. §1536(c)(1). After the initiation of consultation, the action agency “shall not make any irreversible or irretrievable commitment of resources” which would foreclose the “formulation or implementation of any reasonable and prudent alternative measures” to avoid jeopardizing listed species. §1536(d). These action-forcing procedures are “designed to protect some threatened concrete interest,” *ante*, at 573, n. 8, of persons who observe and work with endangered or threatened species. That is why I am mystified by the Court’s unsupported conclusion that “[t]his is not a case where plaintiffs